Privacy Policy

UBoss LLC

A Delaware Limited Liability Company
Operating in the Commonwealth of Massachusetts

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Support:	support@uboss.ai

This document supersedes all prior privacy policies and SMS messaging policies published by UBoss LLC.
This is the sole, authoritative privacy policy governing UBoss services.

Plain-Language Summary

This summary is for convenience only. The full policy below is the legally binding version.

- **What we collect:** Name, address, phone number, email, and preferred communication channel — nothing more unless we tell you first.
- **Why we collect it:** To deliver the automation services you or your service provider requested — form confirmations, appointment reminders, status updates.
- **SMS messaging:** All text messages are transactional only. No marketing. No spam. Message frequency varies. Standard message and data rates may apply. Reply **STOP** (or **ALTO**/**PARAR**) to opt out, **HELP** (or **AYUDA**) for help.
- **We never share your mobile data:** We will not sell, rent, or share your phone number or messaging consent with third parties for marketing or promotional purposes.
- **Our website:** Our public website uses cookies and analytics tools (Google Analytics 4 and Microsoft Clarity) to understand how visitors use the site, and a cookie that simply remembers whether you chose English, Spanish, or Portuguese. This is separate from the data we process for our clients.
- **Your controls:** You can opt out of messages at any time, request a copy of your data, ask us to delete it, or block our cookies in your browser.
- **Security:** Data is stored on infrastructure we own and control, with security practices aligned to SOC 2 principles.
- **Your rights in one place:** Access, correction, deletion, and opt-out are all collected in Section 12.
- **Questions?** Email support@uboss.ai.

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Section 1. Introduction and Scope

This Privacy Policy ("Policy") describes how **UBoss LLC** ("UBoss," "Company," "we," "us," or "our"), a limited liability company organized under the laws of the State of Delaware and physically operating in the Commonwealth of Massachusetts, collects, uses, stores, shares, and protects information obtained through our websites, platforms, automation services, and related tools.

1.1. What This Policy Covers

This Policy applies to:

- Our primary website at UBoss.ai;
- Our automation platform hosted at uboss.work;
- All forms, integrations, and automation workflows operated or maintained by UBoss on behalf of ourselves or our clients ("Tenants");
- All communications initiated through our systems, including SMS, MMS, WhatsApp, email, and voice calls facilitated via third-party services such as Twilio;
- Our SMS messaging program, including all transactional text messages sent through UBoss-registered phone numbers (see Section 9).

1.2. Where We Offer Services

UBoss offers its services to businesses located in the **United States**, and our systems and personnel are located in the United States. Our website is published in English, Spanish, and Portuguese as a convenience for the many United States residents and business owners who prefer to read in those languages. Publishing in those languages is **not** an offer of services in Spain, Portugal, Brazil, Latin America, or any other jurisdiction outside the United States, and UBoss does not target, monitor, or market to individuals located outside the United States.

If you access our website from outside the United States, you do so on your own initiative and are responsible for compliance with local law. Any information you submit will be transferred to, stored in, and processed in the United States, where privacy laws may differ from those of your country of residence.

1.3. Your Agreement

By submitting information through any UBoss-operated form, platform, or communication channel, you ("User," "you," or "your") acknowledge that you have read, understood, and agree to the terms of this Policy. If you do not agree, you must discontinue use of our services and contact us to request removal of any previously submitted data.

UBoss reserves the right to amend this Policy at any time. Material changes will be posted on our website(s) and, where practicable, communicated to affected parties. Continued use of our services following any amendment constitutes acceptance of the revised Policy.

Single Policy Notice: This document is the sole, authoritative privacy policy for UBoss LLC. It incorporates and supersedes any previously published SMS Messaging Policy. There is one privacy policy, and you are reading it.

Section 2. Definitions

For the purposes of this Policy, the following terms shall have the meanings set forth below:

Data Controller
The entity that determines the purposes and means of processing personal data. UBoss acts as a Data Controller when collecting information directly from Users for its own business purposes.

Data Processor
The entity that processes personal data on behalf of a Data Controller. UBoss acts as a Data Processor when executing automation workflows on behalf of a Tenant.

Tenant
A business client of UBoss that engages our services to build and operate automation workflows. Tenants may have their own end-users or customers ("Third-Party End-Users").

Third-Party End-User
An individual who interacts with an automation workflow built by UBoss on behalf of a Tenant. Third-Party End-Users are customers or contacts of the Tenant, not of UBoss directly.

Personal Data / Personally Identifiable Information (PII)
Any information that can be used to identify, contact, or locate an individual, including but not limited to full name, mailing address, telephone number, email address, and preferred communication channel.

Sensitive Data
A subset of Personal Data that includes Social Security numbers, financial account information, health insurance data, government-issued identification numbers, and any data classified as sensitive under applicable federal or state law. UBoss does not currently collect Sensitive Data; however, this Policy contemplates future scenarios in which such collection may become necessary in connection with expanded service offerings.

Subprocessor
A third-party service provider engaged by UBoss to assist in the processing or storage of data (e.g., Tally.so, Twilio, Stripe).

Transactional Communication
A non-promotional message sent to a User or Third-Party End-User for the purpose of confirming a form submission, providing a status update, or facilitating a service-related notification.

Section 3. Information We Collect

3.1. Information Currently Collected

As of the effective date of this Policy, UBoss collects the following categories of Personal Data:

- Full legal name
- Mailing address
- Telephone number(s)
- Email address(es)
- Preferred communication channel (e.g., SMS, email, WhatsApp, phone call)

This information is collected primarily through online forms hosted by Tally.so, a third-party form provider, and is transmitted to UBoss systems via webhook or API integration.

How We Use Your Mobile Information

Your phone number and messaging consent are collected **solely** to deliver transactional service-related messages as described in Section 9 of this Policy. We do not use mobile information for marketing, advertising, or any purpose unrelated to the services you requested.

3.2. Information Collected Automatically

When you visit our public website at uboss.ai, certain information is collected automatically by our hosting providers and by the analytics tools described in Section 5:

- Internet Protocol (IP) address, used to derive an approximate location no more precise than city or region;
- Browser type and version, operating system, device type, and screen dimensions;
- Referring URL, pages viewed, time spent on each page, and access timestamps;
- Language selected on the site (English, Spanish, or Portuguese);
- Interaction data such as clicks, scrolling, and mouse movement, captured by Microsoft Clarity as described in Section 5.5.

Website analytics are separate from client work. The analytics tools described in this Policy run on the UBoss public marketing website only. They are **not** embedded in Tenant automation workflows, and they do not observe, record, or transmit the data UBoss processes on behalf of a Tenant or that Tenant's Third-Party End-Users.

3.3. Information That May Be Collected in the Future

UBoss anticipates that future service offerings may require the collection of additional data categories, which may include but are not limited to:

- Social Security numbers
- Bank account or financial institution information
- Health insurance or healthcare-related data
- Government-issued identification numbers
- Payment card information (processed via Stripe or a comparable PCI-DSS compliant payment processor)

Important

Should UBoss begin collecting any category of Sensitive Data:

1. Affected Users will be notified and asked to provide explicit, informed consent prior to collection;
2. Additional technical and administrative safeguards will be implemented in accordance with applicable law and industry standards;
3. This Policy will be updated to reflect the specific categories of Sensitive Data collected, the purposes for collection, and the retention schedule applicable thereto.

The existence of data fields within our systems capable of storing Sensitive Data does not constitute collection of such data. Collection occurs only when data is actively submitted by a User or provided by a Tenant and processed by UBoss systems.

Section 4. How We Collect Information

UBoss collects information through the following methods:

1. **Online Forms (Tally.so):** Users submit information through forms hosted on the Tally.so platform. Tally.so is a third-party service and maintains its own privacy policy governing data processed on its infrastructure. UBoss receives submitted data via automated webhook or API transmission. By completing and submitting a Tally.so form linked to UBoss services, the User consents to the transfer and processing of their data by UBoss.
2. **Direct Communication:** Users or Tenants may provide information directly to UBoss via email, telephone, messaging platforms, or in-person consultation.
3. **Tenant-Provided Data:** Tenants may supply data regarding their Third-Party End-Users for the purpose of configuring and operating automation workflows. In such cases, the Tenant represents and warrants that they have obtained all necessary consents from their Third-Party End-Users prior to sharing such data with UBoss.
4. **SMS Opt-In:** End-users may opt in to receive SMS messages by submitting a service request form containing a phone number field and consent checkbox, by verbally confirming consent, by initiating contact via text message to a UBoss-registered number, or by pressing a key on a recorded phone greeting. See Section 9 for complete opt-in details.
5. **Website Cookies and Analytics:** When you visit our public website, information is collected automatically through cookies and analytics tools as described in Section 5.

6. **Future Collection Methods:** UBoss may implement additional collection methods in the future, including but not limited to account registration portals, payment processing integrations, and cloud-hosted application interfaces. This Policy will be updated accordingly.

Section 5. Cookies, Analytics, and Tracking Technologies

This Section describes the cookies and analytics technologies used on the UBoss public website. It does not apply to automation workflows operated on behalf of Tenants, which do not use these technologies.

5.1. What Cookies Are

A cookie is a small text file placed on your device by a website. Cookies allow a site to remember your choices between visits and allow analytics tools to distinguish one visitor from another. Some cookies are placed by UBoss directly ("first-party" cookies) and some are placed by the analytics providers we use ("third-party" cookies).

5.2. Cookies We Use

Cookie	Set by	Purpose	Retention
Language preference	UBoss (first-party)	Records whether you selected English, Spanish, or Portuguese so that the site opens in that language on your next visit.	Up to 1 year
`_ga`, `_ga_*`	Google	Distinguishes visitors and sessions for Google Analytics 4 traffic measurement.	Up to 2 years
`_clck`	Microsoft	Persists a Microsoft Clarity visitor identifier across sessions.	Up to 1 year
`_clsk`	Microsoft	Links a visitor's page views within a single Microsoft Clarity session.	1 day

5.3. Language Preference Cookie

The UBoss website is published in English, Spanish, and Portuguese. When you choose a language, we store that choice in a first-party cookie so that the site opens in your chosen language on subsequent visits.

This Cookie Does Not Track You

The language preference cookie stores a language code and nothing else. It does not contain your name, email address, phone number, IP address, or any identifier that could be used to recognize you across other websites. It is a **strictly necessary / functional** cookie: it exists solely to make the site work the way you asked it to.

5.4. Google Analytics 4

We use Google Analytics 4 ("GA4"), a web analytics service provided by Google LLC, to understand how visitors find and use our website — for example, which pages are viewed most often and which pages visitors leave from. GA4 sets the cookies listed above and processes information including your device type, browser, referring source, pages viewed, and an approximate geographic location derived from your IP address.

UBoss has configured GA4 so that IP addresses are used only to derive approximate location and are not stored in our analytics reporting. UBoss does not use GA4 for advertising, does not enable Google Signals or advertising personalization features, and does not combine GA4 data with the Personal Data we process for Tenants.

Google's handling of this information is governed by the Google Privacy Policy. You may prevent GA4 from collecting your data by installing the Google Analytics Opt-out Browser Add-on.

5.5. Microsoft Clarity

Session Recording Notice — Please Read

Microsoft Clarity does more than count page views. It records a reconstruction of your visit, including **mouse movement, clicks, scrolling, and the pages as they appeared on your screen**, and produces session replays and heatmaps from that recording. We want you to know this plainly rather than describe it as ordinary "analytics."

We use Microsoft Clarity, a behavioral analytics service provided by Microsoft Corporation, to see where visitors get stuck or confused on our website so that we can improve it. Clarity captures interaction data and generates session replays and heatmaps.

UBoss uses Clarity with its **text masking enabled**, which is the Clarity default. This means that text you type into form fields — including names, email addresses, phone numbers, and any free-text entry — is obscured before the recording leaves your browser and is not visible to UBoss in session replays. UBoss does not disable masking, does not attempt to reconstruct masked content, and does not use Clarity to identify individual visitors.

Microsoft's handling of this information is governed by the Microsoft Privacy Statement. Microsoft may use data collected through Clarity in accordance with that statement, including to operate and improve Microsoft products and services.

5.6. No Cookie Consent Banner

We are telling you this directly: the UBoss website does **not** currently display a cookie consent banner. The analytics cookies described above are set when you visit the site. This Policy is your notice, and the controls described in Section 5.7 are how you decline.

UBoss offers services within the United States, where notice of this kind is the prevailing practice for non-advertising website analytics. If UBoss begins offering services in a jurisdiction that requires

prior consent before analytics cookies are set, UBoss will implement a consent mechanism and update this Policy before doing so.

5.7. Your Choices

You can control or decline these cookies in the following ways:

- **Browser settings:** Every major browser lets you block or delete cookies, and most offer a setting to reject third-party cookies entirely. Consult your browser's help documentation.
- **Google Analytics:** Install the Google Analytics Opt-out Browser Add-on.
- **Microsoft Clarity:** Clarity honors the browser-level and tracking-protection controls described in the Microsoft Privacy Statement. Blocking third-party cookies or using a browser with tracking protection enabled will prevent Clarity from recording your session.
- **Browser privacy modes and blockers:** Private browsing modes, tracking protection, and content blockers will generally prevent both GA4 and Clarity from collecting data.

Please note: blocking cookies will also prevent the language preference cookie from working. The site will still function, but it will not remember your language choice between visits.

5.8. Do Not Track and Global Privacy Control

Web browsers may transmit a "Do Not Track" (DNT) signal. Because no common industry standard for interpreting DNT has been adopted, the UBoss website does not currently respond to DNT signals.

UBoss does not sell personal information, and does not share personal information for cross-context behavioral advertising, as those terms are defined under United States state privacy laws. Should UBoss's practices or obligations change such that an opt-out right applies, UBoss will honor the Global Privacy Control (GPC) signal and will update this Policy accordingly.

Section 6. Third-Party Subprocessors

UBoss engages the following third-party services ("Subprocessors") in the course of providing its services. Each Subprocessor maintains its own privacy policy and terms of service:

1. **Tally.so** — Online form hosting and data collection. Data submitted through Tally.so forms is transmitted to UBoss systems. Tally.so may process and temporarily store form submissions on its own infrastructure.
2. **Twilio** — SMS, WhatsApp, and voice communication services. UBoss uses Twilio to send Transactional Communications on behalf of itself and its Tenants. All messaging conducted through Twilio is subject to Twilio's Acceptable Use Policy, the Telephone Consumer Protection Act (TCPA), and applicable FCC regulations including 10DLC registration requirements.
3. **Vercel / GitHub Pages** — Website hosting for UBoss.ai. These platforms may collect standard web server logs (IP address, browser type, access timestamps).
4. **Google LLC (Google Analytics 4)** — Website traffic analytics for the UBoss public website.

See Section 5.4. Google does not receive Personal Data processed through UBoss automation workflows.

5. **Microsoft Corporation (Microsoft Clarity)** — Website behavioral analytics, session replay, and heatmaps for the UBoss public website. See Section 5.5. Microsoft does not receive Personal Data processed through UBoss automation workflows.
6. **Stripe (Future)** — Payment processing. If and when UBoss implements online payment functionality, payment card data will be processed exclusively by Stripe in accordance with PCI-DSS standards. UBoss will not store, process, or have access to full payment card numbers.
7. **Anthropic (Conditional Fallback)** — AI language model provider. In rare cases where UBoss's self-hosted AI infrastructure is insufficient, requests may be routed to Anthropic's API. Data transmitted is limited to the minimum necessary for the task and does not include raw personally identifiable information.
8. **OpenAI (Conditional Fallback)** — AI language model provider. Used as an alternative fallback under the same conditions and restrictions as Anthropic above.
9. **Amazon Web Services (AWS) (Future)** — Cloud infrastructure. If and when UBoss migrates to cloud-hosted infrastructure, appropriate network security controls, encryption, and access management will be implemented.

UBoss may engage additional Subprocessors as business needs evolve. Material additions to this list will be reflected in updates to this Policy.

UBoss exercises commercially reasonable diligence in selecting Subprocessors but does not guarantee and shall not be held liable for the privacy practices, security measures, or data handling of any third-party Subprocessor. Users are encouraged to review the privacy policies of each Subprocessor independently.

Section 7. Purpose and Legal Basis for Processing

UBoss processes Personal Data for the following purposes:

1. **Service Delivery:** To provide, configure, and operate automation workflows for Tenants and their Third-Party End-Users.
2. **Transactional Communications:** To send non-promotional notifications including form submission confirmations, job status updates, appointment confirmations, and service-related alerts via SMS, WhatsApp, email, or voice.
3. **Client Relationship Management:** To maintain records of business relationships, respond to inquiries, and provide customer support.
4. **Compliance and Legal Obligations:** To comply with applicable federal, state, and local laws, including data breach notification requirements under Massachusetts General Laws Chapter 93H.
5. **Security and Fraud Prevention:** To protect UBoss systems, detect unauthorized access, and maintain the integrity of our infrastructure.
6. **Business Operations:** To manage invoicing, contracts, and internal business processes.

7. **Analytics and Service Improvement:** To create anonymized, de-identified, and aggregated datasets for use in improving UBoss tools, training machine learning models, generating industry benchmarks, and developing commercial analytics insights. Such datasets will not contain personally identifiable information and will not be more granular than zip code or city-level geography.

Legal Basis: Processing is conducted on the basis of (a) the User's consent as expressed through form submission or direct communication; (b) the performance of a contract between UBoss and a Tenant; (c) compliance with legal obligations; and (d) UBoss's legitimate business interests, provided such interests do not override the rights of the data subject.

Section 8. Consent and Opt-In

8.1. Form-Based Consent

All Tally.so forms operated by or on behalf of UBoss include a clear and conspicuous disclosure stating that submission of the form constitutes consent to the collection and processing of the submitted data by UBoss LLC for the purposes described in this Policy. Users who do not wish to consent should not submit the form.

8.2. Messaging Consent (TCPA / 10DLC Compliance)

By providing a telephone number and indicating SMS or WhatsApp as a preferred or acceptable communication channel, the User expressly consents to receive Transactional Communications from UBoss via Twilio-powered messaging services. This consent is subject to the following conditions:

- **No Promotional Messaging:** UBoss does not send promotional, marketing, or advertising messages via SMS, WhatsApp, or voice. All messaging is strictly transactional in nature. Any promotional or advertising outreach will be conducted independently through appropriate channels (e.g., social media platforms) and in compliance with those platforms' policies and applicable law.
- **10DLC Registration:** UBoss maintains appropriate 10DLC campaign registration with applicable carriers and The Campaign Registry (TCR) as required for A2P (Application-to-Person) messaging.
- **Consent Is Not a Condition of Purchase:** Consent to receive text messages is not a condition of purchasing any goods or services from UBoss or any UBoss Tenant.

For complete details on message frequency, data rates, opt-out instructions, and mobile information sharing, see Section 9.

8.3. Tenant Responsibility for Third-Party End-User Consent

When UBoss operates automation workflows that involve Third-Party End-Users, the Tenant is responsible for:

1. Obtaining all necessary consents from Third-Party End-Users prior to providing their data to

UBoss;

2. Ensuring that appropriate disclosures are made to Third-Party End-Users regarding the nature, purpose, and frequency of any communications;
3. Providing Third-Party End-Users with copies of or access to applicable consent forms, privacy notices, or terms of service;
4. Maintaining records of consent sufficient to demonstrate compliance with TCPA, state law, and Twilio's Acceptable Use Policy.

UBoss will provide Tenants with template disclosure language and consent forms where applicable, but **the Tenant bears ultimate responsibility for ensuring valid consent has been obtained** from their Third-Party End-Users. UBoss shall not be held liable for a Tenant's failure to obtain proper consent.

Section 9. SMS Messaging Program

SMS Program At-a-Glance

Brand Name:	UBoss LLC
Website:	https://uboss.ai
Support Email:	support@uboss.ai
Message Type:	Transactional only — no marketing or promotions
Frequency:	Varies by service engagement
Cost:	Standard message and data rates may apply
Opt-Out:	Reply **STOP**, **ALTO** or **PARAR** to any message
Help:	Reply **HELP** or **AYUDA**, or email support@uboss.ai
Opt Back In:	Reply **START** or **INICIAR**

9.1. Program Description

UBoss sends transactional SMS messages to two categories of recipients:

1. **Business Clients and Staff:** Internal notifications alerting business owners and team members of new customer inquiries, job assignments, and operational updates.
2. **End-User Customers:** Appointment confirmations, service request acknowledgments, post-service follow-ups, and review requests sent to customers on behalf of UBoss Tenant businesses.

All messages are **strictly transactional in nature**. UBoss does not send promotional, marketing, or advertising messages via SMS.

9.2. Consent and Opt-In Methods

End users opt in to receive SMS messages through the following methods:

- **Web Form:** Customers submit a service request through an online form that includes a phone

number field and a consent checkbox agreeing to receive SMS updates related to their service request.

- **Verbal Consent:** Business clients may verbally confirm consent for their staff or customers to receive transactional messages.
- **Via Text:** Users may initiate contact by texting a UBoss-registered number, which constitutes consent to receive a response.
- **Phone Keypress:** When a call to a UBoss-registered business line is not answered, the caller hears this recorded message in English: "Thanks for calling UBOSS. We can't pick up right now. If you'd like a call back, and you're OK getting text updates about it, press 1. Message and data rates may apply. Reply STOP anytime to opt out." The caller then hears the same offer in Spanish: "Gracias por llamar a UBOSS. Si desea que le devolvamos la llamada y acepta recibir mensajes de texto, oprima 9. Pueden aplicar tarifas de mensajes y datos. Responda ALTO para cancelar." Pressing the key offered in the recorded message for the caller's language is the caller's consent. UBoss logs the keypress, the caller's phone number, and the date and time. The caller then receives one text confirming the call back, in the chosen language. Callers who hang up or press no key receive no text messages by default.

Consent is limited to transactional communications related to the service requested. Consent is not a condition of purchasing any goods or services.

9.3. Message Frequency

Message frequency varies based on the nature of the service engagement and automation workflow. Users will only receive messages directly related to a service they have requested or an appointment they have scheduled. For callers who opt in by phone keypress, this means one confirmation per call-back request, plus replies to messages you send.

9.4. Message and Data Rates

Standard message and data rates may apply depending on your wireless carrier and mobile plan. UBoss is not responsible for any charges incurred by your carrier.

9.5. Opt-Out Instructions

You may opt out of receiving SMS messages at any time.

How to Opt Out

Reply STOP, ALTO or PARAR to any message from a UBoss-registered number to immediately cease receiving SMS messages.

Upon receipt of a STOP request:

- You will receive a single confirmation message acknowledging your opt-out.
- No further messages will be sent from that number.

- Your opt-out applies only to the specific number and campaign from which the request was made.

To resume messages after opting out, reply **START** or **INICIAR**.

Additional opt-out keywords honored: STOP, ALTO, PARAR, STOPALL, UNSUBSCRIBE, CANCEL, END, QUIT, OPTOUT, REVOKE.

9.6. Help and Support

For assistance, reply **HELP** or **AYUDA** to any message from a UBoss-registered number. You will receive a response with support contact information and opt-out instructions. You may also contact us directly:

- **Email:** support@uboss.ai
- **Website:** https://uboss.ai

9.7. Mobile Information Sharing

CTIA Required Disclosure

UBoss will not sell, rent, share, or provide mobile phone numbers or opt-in consent data to any third parties or affiliates for marketing or promotional purposes.
All the above categories exclude text messaging originator opt-in data and consent; this information will not be shared with any third parties.

Mobile information is used **solely** for the purpose of delivering transactional service-related messages as described in this Policy. Mobile information is transmitted to Twilio exclusively for message delivery and is not used, stored, or shared by Twilio for any purpose beyond transmission.

9.8. Carrier Liability

Carriers are not liable for any delayed or undelivered messages. Message delivery is subject to wireless carrier network availability and coverage. UBoss makes no guarantee regarding the timing or delivery of any SMS message.

Section 10. Messaging and Communications (All Channels)

10.1. Channels

UBoss may communicate with Users and Third-Party End-Users through the following channels:

- **SMS / MMS:** Via Twilio, sent from UBoss-registered numbers.
- **WhatsApp:** Via Twilio's WhatsApp Business API, sent from UBoss-registered accounts.
- **Email:** Sent from UBoss-controlled email addresses or, in certain automation workflows, from a Tenant's own email account as configured by the Tenant. When email is sent from a Tenant's

account, the Tenant is the sender of record and is independently responsible for compliance with the CAN-SPAM Act and applicable state law.

10.2. Nature of Communications

All communications initiated through UBoss automation systems are **transactional in nature** and limited to:

- Confirmation that a form has been submitted or received;
- Updates on the status of a labor job, service request, or project;
- Appointment or scheduling confirmations;
- Requests for additional information necessary to complete a service;
- System or account-related notifications.

UBoss does not use its automation systems to send promotional content, advertisements, solicitations, or marketing messages. Any promotional outreach conducted by UBoss or its Tenants will be performed through separate, dedicated channels with independent compliance controls.

Section 11. Opt-Out and Unsubscribe (Off-Ramps)

UBoss respects every individual's right to cease receiving communications. The following opt-out mechanisms are available:

11.1. SMS / WhatsApp

Users and Third-Party End-Users may reply **STOP**, **ALTO** or **PARAR** to any message received from a UBoss-registered number to immediately cease SMS or WhatsApp communications from that specific number or campaign. Upon receipt of a STOP, ALTO or PARAR request, UBoss will:

1. Acknowledge the opt-out with a single confirmation message;
2. Suppress the requesting number from future messaging within the applicable automation workflow;
3. Process the opt-out within a commercially reasonable timeframe, not to exceed ten (10) business days.

11.2. Email

All emails sent through UBoss automation include a functional unsubscribe mechanism in compliance with the CAN-SPAM Act. Emails sent from a Tenant's own email account are subject to the Tenant's own unsubscribe process.

11.3. Multi-Service Opt-Out

UBoss operates multiple automation workflows across multiple communication channels and service categories. Because a single User or Third-Party End-User may be enrolled in more than

one workflow:

- An opt-out request applies only to the **specific workflow, channel, or campaign** from which the request originated, unless the User explicitly requests a complete opt-out from all UBoss communications.
- It is the responsibility of the User or Third-Party End-User to identify which specific service(s) or communication source(s) they wish to discontinue. UBoss will make commercially reasonable efforts to assist in identifying active workflows, but cannot guarantee identification of all touchpoints without the User's cooperation.
- To request a **complete opt-out** from all UBoss-operated communications, Users may contact us directly at the contact information provided in Section 21.

11.4. Right to Terminate

UBoss reserves the unilateral right to terminate any automation workflow, communication channel, or data processing activity at any time, for any reason, including but not limited to suspected misuse, legal compliance concerns, or Tenant breach of contract. Exercise of this right shall not constitute a breach of any agreement between UBoss and a Tenant.

Section 12. Your Privacy Rights and Choices

Rights relating to your Personal Data are described throughout this Policy. This Section collects them in one place so you do not have to hunt for them.

12.1. Rights Available to You

Access
You may request confirmation of whether UBoss holds Personal Data about you and request a copy of that data in a commonly used, machine-readable format.

Correction
You may request that UBoss correct Personal Data about you that is inaccurate or incomplete.

Deletion
You may request that UBoss delete Personal Data about you. UBoss will honor the request except where retention is required by law, necessary to resolve a dispute, or necessary to maintain a suppression record under Section 15.

Opt Out of Communications
You may stop SMS or WhatsApp messages at any time by replying **STOP** (or **ALTO**/**PARAR**), and stop emails using the unsubscribe link. See Section 11.

Opt Out of Website Analytics
You may decline the analytics cookies described in Section 5 using the controls in Section 5.7.

Withdraw Consent
Where UBoss processes data on the basis of your consent, you may withdraw that consent at any

time. Withdrawal does not affect processing already carried out.

Non-Discrimination
UBoss will not deny you services, charge you a different price, or provide you a lower quality of service because you exercised any right described in this Section.

12.2. How to Exercise These Rights

Send your request to support@uboss.ai. Please describe what you are asking for and provide enough information for UBoss to locate your records — typically the phone number or email address you provided.

What Happens Next

- **Acknowledgment** within ten (10) business days of receipt.
- **Substantive response** within forty-five (45) calendar days. If UBoss needs more time, we will tell you why and complete the response within a total of ninety (90) days.
- **No charge** for a reasonable request. UBoss may decline or charge a reasonable fee for requests that are manifestly unfounded, repetitive, or excessive, and will explain the reason if it does so.
- **Verification.** UBoss will take reasonable steps to confirm you are who you say you are before disclosing or deleting data. UBoss will not use information provided for verification for any other purpose.

12.3. Requests From a Tenant's Customers

If you are a Third-Party End-User — that is, a customer of a business that uses UBoss — UBoss acts as a Data Processor and the business you dealt with is the Data Controller. Direct your request to that business where possible.

You may still contact UBoss directly, and we will act on requests that we can honor independently, including stopping messages sent from UBoss-operated numbers. For requests that require the Tenant's instruction, UBoss will forward your request to the Tenant without undue delay and tell you that it has done so.

12.4. Authorized Agents

You may use an authorized agent to submit a request on your behalf. UBoss may require written proof of the agent's authorization and may require you to verify your own identity directly.

12.5. Complaints

If you believe UBoss has mishandled your Personal Data, contact us first at support@uboss.ai — we would rather fix it directly. Massachusetts residents may also contact the Office of the Attorney General of the Commonwealth of Massachusetts or the Massachusetts Office of Consumer Affairs and Business Regulation.

Section 13. Multi-Tenant (B2B2C) Responsibilities

UBoss provides automation services to business clients (Tenants) who may, in turn, use those services to interact with their own customers (Third-Party End-Users). This creates a multi-tenant architecture in which responsibilities are allocated as follows:

13.1. UBoss Responsibilities

- Build, configure, and maintain automation workflows to Tenant specifications;
- Implement commercially reasonable security controls aligned with SOC 2 principles;
- Process data in accordance with this Policy and applicable law;
- Provide opt-out and off-ramp mechanisms for communications sent through UBoss-controlled channels;
- Notify Tenants and affected parties in the event of a data breach as required by law;
- Retain the right to terminate or suspend any workflow that UBoss believes, in its sole discretion, violates applicable law, Twilio's Acceptable Use Policy, or this Policy.

13.2. Tenant Responsibilities

Tenants engaging UBoss services represent, warrant, and agree that they shall:

- Obtain and maintain all necessary consents from Third-Party End-Users before providing their data to UBoss or directing UBoss to initiate communications on their behalf;
- Provide Third-Party End-Users with adequate notice regarding the types of communications they will receive and the identity of the parties involved;
- Comply with all applicable federal, state, and local laws governing data privacy, consumer protection, and electronic communications, including but not limited to TCPA, CAN-SPAM, and Massachusetts General Laws Chapters 93A and 93H;
- Refrain from using UBoss automation services to send unsolicited commercial messages, spam, or any communication that violates Twilio's Acceptable Use Policy;
- Indemnify and hold harmless UBoss from any claims, damages, fines, penalties, or liabilities arising from the Tenant's failure to comply with the obligations set forth in this section;
- Promptly notify UBoss of any opt-out requests, complaints, or legal actions received from Third-Party End-Users relating to communications sent through UBoss systems.

13.3. Data Ownership

Data collected through UBoss-operated forms and automation workflows is stored in UBoss-controlled databases. Tenants may request export or transfer of data pertaining to their Third-Party End-Users, subject to the following conditions:

- The request must be submitted in writing;
- UBoss will provide the data in a commonly used, machine-readable format within a commercially reasonable timeframe;

- UBoss retains the right to maintain archival copies of data as required for legal compliance, audit, or dispute resolution purposes;
- Upon termination of the Tenant relationship, data will be retained for a period not to exceed ninety (90) days unless a longer retention period is required by law, after which it will be securely deleted.

Section 14. Data Storage and Security

14.1. Current Infrastructure

As of the effective date of this Policy, all data processed by UBoss automation workflows is stored on a **locally owned and operated server** maintained by UBoss LLC. This server runs containerized applications (Docker) hosting the n8n automation platform and associated databases. The server is located in Massachusetts and is under the physical and administrative control of UBoss.

14.2. Security Practices

UBoss implements security practices aligned with the principles of SOC 2 (Service Organization Control 2), including but not limited to:

- Access controls and authentication mechanisms;
- Encryption of data in transit (TLS/SSL);
- Regular software updates and patch management;
- Network segmentation and firewall configuration;
- Logging and monitoring of system access;
- Principle of least privilege for administrative access.

Disclaimer: UBoss has not undergone a formal SOC 2 Type I or Type II audit as of the effective date of this Policy. References to SOC 2 alignment indicate that UBoss voluntarily follows security practices modeled on the SOC 2 Trust Services Criteria. UBoss does not represent or warrant that its security controls have been independently verified or certified.

14.3. Future Infrastructure

UBoss anticipates transitioning certain services to cloud-hosted infrastructure (e.g., Amazon Web Services) in the future. Such migration will include implementation of:

- Virtual Private Cloud (VPC) network isolation;
- Encryption of data at rest and in transit;
- Identity and Access Management (IAM) controls;
- Automated backup and disaster recovery procedures.

This Policy will be updated to reflect infrastructure changes as they are implemented.

Section 15. Data Retention and Deletion

UBoss retains Personal Data only for as long as necessary to fulfill the purposes described in this Policy or as required by applicable law. Specific retention guidelines are as follows:

- **Active Client Data:** Retained for the duration of the business relationship plus ninety (90) days following termination.
- **Archived / Inactive Data:** May be retained in anonymized or aggregated form for analytics and business improvement purposes.
- **Legal Hold:** Data subject to a legal hold, regulatory investigation, or pending litigation will be retained until the matter is resolved, notwithstanding any other retention schedule.
- **Opt-Out Records:** Records of opt-out and unsubscribe requests will be retained indefinitely to ensure continued compliance with suppression obligations.

Deletion Requests: Users may request deletion of their Personal Data by contacting UBoss at the information provided in Section 21. UBoss will process deletion requests within thirty (30) calendar days, subject to any legal retention obligations. Deletion of data from third-party Subprocessor systems is governed by the respective Subprocessor's data retention policies.

Section 16. Massachusetts State Law Compliance

UBoss operates in the Commonwealth of Massachusetts and complies with applicable Massachusetts data privacy and consumer protection laws, including:

16.1. 201 CMR 17.00 — Standards for the Protection of Personal Information

To the extent that UBoss collects, stores, or processes "personal information" as defined under 201 CMR 17.00 (a Massachusetts resident's first and last name in combination with a Social Security number, driver's license number, state ID number, or financial account number), UBoss shall develop and maintain a Written Information Security Program (WISP) that includes administrative, technical, and physical safeguards appropriate to the size, scope, and nature of UBoss's business.

As of the effective date of this Policy, UBoss does not collect data elements that trigger the WISP requirement under 201 CMR 17.00. Should UBoss begin collecting such data, a WISP will be developed and implemented prior to or concurrent with such collection.

16.2. Massachusetts General Laws Chapter 93A — Consumer Protection

UBoss conducts its business in compliance with Chapter 93A, which prohibits unfair or deceptive acts or practices in trade or commerce. UBoss commits to transparent data practices, honest disclosures, and fair dealing with all Users, Tenants, and Third-Party End-Users.

16.3. Massachusetts General Laws Chapter 93H — Data Breach Notification

In the event of a breach of security involving Personal Data of a Massachusetts resident, UBoss will:

1. Notify the Massachusetts Attorney General's Office and the Office of Consumer Affairs and Business Regulation as soon as practicable and without unreasonable delay;
2. Notify affected individuals in writing, providing a description of the breach, the types of data involved, and steps the individual may take to protect themselves;
3. Cooperate with law enforcement and regulatory authorities as required;
4. If applicable, notify affected Tenants so they may fulfill their own notification obligations to Third-Party End-Users.

Section 17. Limitation of Liability and Business Protections

17.1. Disclaimer of Warranties

UBOSS PROVIDES ITS SERVICES ON AN "AS IS" AND "AS AVAILABLE" BASIS. TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, UBOSS DISCLAIMS ALL WARRANTIES, WHETHER EXPRESS, IMPLIED, STATUTORY, OR OTHERWISE, INCLUDING BUT NOT LIMITED TO IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT. UBOSS DOES NOT WARRANT THAT ITS SERVICES WILL BE UNINTERRUPTED, ERROR-FREE, OR COMPLETELY SECURE.

17.2. Limitation of Liability

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, IN NO EVENT SHALL UBOSS, ITS MEMBERS, MANAGERS, OFFICERS, EMPLOYEES, OR AGENTS BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, INCLUDING BUT NOT LIMITED TO LOSS OF PROFITS, DATA, BUSINESS OPPORTUNITIES, OR GOODWILL, ARISING OUT OF OR IN CONNECTION WITH THIS POLICY, THE SERVICES PROVIDED BY UBOSS, OR ANY DATA BREACH OR UNAUTHORIZED ACCESS, REGARDLESS OF THE THEORY OF LIABILITY (CONTRACT, TORT, STRICT LIABILITY, OR OTHERWISE) AND EVEN IF UBOSS HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

UBOSS'S TOTAL AGGREGATE LIABILITY ARISING OUT OF OR RELATED TO THIS POLICY OR THE SERVICES SHALL NOT EXCEED THE TOTAL FEES PAID BY THE AFFECTED TENANT OR USER TO UBOSS DURING THE TWELVE (12) MONTHS PRECEDING THE EVENT GIVING RISE TO THE CLAIM.

17.3. Indemnification

Each Tenant agrees to indemnify, defend, and hold harmless UBoss LLC, its members, managers, officers, employees, and agents from and against any and all claims, demands, actions, damages, losses, liabilities, costs, and expenses (including reasonable attorneys' fees) arising out of or relating to:

1. The Tenant's failure to obtain proper consent from Third-Party End-Users;
2. The Tenant's misuse of UBoss automation services;
3. The Tenant's violation of any applicable law, regulation, or third-party terms of service;
4. Any claim by a Third-Party End-User arising from the Tenant's use of UBoss services;
5. The Tenant's provision of inaccurate, misleading, or unlawfully obtained data to UBoss.

17.4. Force Majeure

UBoss shall not be liable for any failure or delay in performance resulting from causes beyond its reasonable control, including but not limited to acts of God, natural disasters, pandemic, government actions, power outages, internet service disruptions, cyberattacks by third parties, or failures of third-party Subprocessors.

17.5. No Third-Party Beneficiaries

This Policy is between UBoss and the User or Tenant. Nothing in this Policy shall be construed to create any rights, obligations, or causes of action in favor of any third party, including Third-Party End-Users, except as expressly set forth herein or as required by applicable law.

Section 18. Children's Privacy

UBoss services are intended for use by businesses and individuals aged eighteen (18) years or older. UBoss does not knowingly collect Personal Data from children under the age of thirteen (13) in compliance with the Children's Online Privacy Protection Act (COPPA). If UBoss becomes aware that it has inadvertently collected data from a child under 13, UBoss will take prompt steps to delete such data and terminate any associated account or workflow.

If you believe that a child under 13 has provided Personal Data to UBoss, please contact us immediately at the information provided in Section 21.

Section 19. Governing Law and Jurisdiction

19.1. Corporate Matters

UBoss LLC is organized under the laws of the State of Delaware. Any disputes relating to the formation, governance, or internal affairs of UBoss LLC shall be governed by Delaware law.

19.2. Data Privacy and Consumer Protection

All matters relating to data privacy, consumer protection, electronic communications, and the processing of Personal Data shall be governed by the laws of the Commonwealth of Massachusetts, without regard to its conflict-of-law principles, to the extent that the User or data subject is

a Massachusetts resident or the data was collected in connection with UBoss's Massachusetts operations.

19.3. Federal Law

This Policy is subject to applicable federal laws, including but not limited to the Telephone Consumer Protection Act (TCPA), the CAN-SPAM Act, the Children's Online Privacy Protection Act (COPPA), and regulations promulgated by the Federal Communications Commission (FCC) and the Federal Trade Commission (FTC).

19.4. Dispute Resolution

Any dispute arising out of or relating to this Policy shall first be subject to good-faith negotiation between the parties for a period of thirty (30) days. If the dispute cannot be resolved through negotiation, it shall be submitted to binding arbitration in accordance with the rules of the American Arbitration Association (AAA), with the arbitration to be conducted in Massachusetts. Each party shall bear its own costs and attorneys' fees, unless the arbitrator determines otherwise.

Section 20. Changes to This Policy

UBoss reserves the right to modify, amend, or replace this Policy at any time. When changes are made:

- The "Last Updated" date at the top of this document will be revised;
- Material changes will be posted prominently on UBoss.ai;
- Where feasible, Tenants with active service agreements will be notified via email or other reasonable means;
- Continued use of UBoss services after the posting of changes constitutes acceptance of the revised Policy.

UBoss encourages all Users and Tenants to review this Policy periodically.

Section 21. Contact Information

For questions, concerns, data access requests, deletion requests, or opt-out requests, please contact:

UBoss LLC
Privacy and Data Protection Inquiries

Email: support@uboss.ai
Website: https://uboss.ai

Mailing address available upon request.

End of Privacy Policy — UBoss LLC

Effective October 27, 2026 · Legal Pack v1.1

This document supersedes all prior privacy policies and SMS messaging policies published by UBoss LLC.